

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

WOODROW CUNNINGHAM,
Plaintiff,

Index:

-v-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, and
P.O. DRAGAN KACANSKI –
Shield No. 13559, and The KINGS COUNTY
DISTRICT ATTORNEY,
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and serve a copy of your answer on Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the attached complaint.

**Dated: Brooklyn, New York
23 July 2018**

s/ Jack Courtney
**Stuart Meltzer & Associates, PC
1 Pierrepont Plaza, 12th floor
Brooklyn, NY 11201
By Jack Courtney NY: 4540217
917 698 8784 917 204 5099
jack@courtneylaw.us**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WOODROW CUNNINGHAM, Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and P.O. DRAGAN KACANSKI -
SHIELD NO. 13559 and
THE KINGS COUNTY DISTRICT ATTORNEY

Defendants.

-----X

Plaintiff, **WOODROW CUNNINGHAM**, by his attorneys,
Stuart Meltzer & Associates, PC, complaining of Defendants,
allege, upon information and belief, as follows:

- 1) At all times hereinafter mentioned, defendant, THE
CITY OF NEW YORK (hereinafter referred to as "CITY"),
was and is a municipal corporation duly existing under
the laws of the State of New York.
- 2) At all times hereinafter mentioned, defendant, DRAGAN
KACANSKI - SHIELD NO. 13559 (hereinafter referred to
as "Kacanski"), was a police officer with the Police
Department of The City of New York.

- 3) At all times hereinafter mentioned Defendant, CITY, employed Kacanski and other police officers.
- 4) At all times hereinafter mentioned, defendant, Kacanski, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.
- 5) At all times hereinafter mentioned, defendant, Kacanski, was acting under color of law and authority as police officers with the Police Department of The City of New York.

At all times hereafter mentioned, defendant, Kings County District Attorney, acting as an agency under the authority of the City of New York, was acting under color of law and authority to Prosecute the complaint levied by defendant Kacanski.

- 6) On August 5, 2017, Plaintiff, WOODROW CUNNINGHAM, duly served a Notice of Claim upon The City of New York in the manner and mode required by law.
- 7) That on October 23, 2017 Plaintiff appeared for a hearing pursuant to General Municipal Law 50-h.
- 8) That thirty days have elapsed since the service of said Notices of Claim and Plaintiff's claims have not been adjusted or paid.

- 9) That this action is brought within one year and ninety days from the date of occurrence complained of herein.
- 10) That Plaintiff has complied with all conditions precedent applicable to the instant action.

FIRST CAUSE OF ACTION

- 11) Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "10" above as if fully set forth herein.
- 12) A. On July 13, 2017, after an exhaustive and time consuming Criminal defense, the complaint filed by Kacanski and the prosecution undertaken against WOODROW CUNNINGHAM was dismissed and the record sealed by Honorable Donald Leo in the DWI part of Kings County Criminal Court.

B. On August 8, 2015, while Plaintiff, WOODROW CUNNINGHAM (hereinafter referred to as "Cunningham"), was lawfully standing in front of 1518 Eastern Parkway in the County of Kings, City and State of New York, he was unlawfully detained by employees, agents and/or servants of defendant, CITY, including defendant, Kacanski.

- 13) That said unlawful detention was without justification and beyond the boundaries of reasonableness.
- 14) That Defendant, CITY, through its agents, servants and/or employees, including defendant, Kacanski, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.
- 15) That Defendant, Kacanski, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.
- 16) That at the time of his unlawful imprisonment, Plaintiff had not committed any illegal act.
- 17) That at the time of his unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.
- 18) That at the time of Plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.
- 19) That said false imprisonment caused Plaintiff to suffer severe emotional and psychological distress,

anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to his reputation.

- 20) As a result of the foregoing, Plaintiff Cunningham demands judgment against defendants CITY and Kacanski in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

- 21) Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "20" as if more fully set forth herein.
- 22) On August 8, 2015 while plaintiff, Cunningham, was lawfully in front of the premises known as 1518 Eastern Parkway in the County of Kings, City and State of New York, he was assaulted and battered by police officers employed by The City of New York without provocation.
- 23) As a result of the above mentioned unprovoked assault and battery, plaintiff, Cunningham, was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers

severe and permanent injuries and, upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to cure himself of said injuries.

- 24) As a result of the foregoing, Plaintiff, Cunningham, demands judgment against defendants CITY and Kacanski in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

- 25) Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "24" as if more fully set forth herein.
- 26) On August 8, 2015 defendants did maliciously cause a criminal prosecution to be commenced against Plaintiff, Cunningham, by filing an accusatory instrument, without probable cause and in bad faith.

- 27) On July 12, 2017 after, upon information and belief, more than 14 Court Appearances and nearly two years, the charges against Plaintiff, Cunningham, were dismissed.
- 28) In commencing and continuing said malicious prosecution, defendants caused Plaintiff, Cunningham, to be falsely charged with crimes in violation of the Penal Laws and Vehicle and Traffic Laws of the State of New York.
- 29) Plaintiff had not committed any illegal act.
- 30) Plaintiff had not given defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.
- 31) Defendants knew or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed and incomplete.
- 32) Defendants, their agents, servants and/or employees willful and wrongfully accused Plaintiff of having committed a crime in violation of the Penal Laws and Vehicle and Traffic Laws of the State of New York.

- 33) As a result of the malicious prosecution, Plaintiff suffered, and continues to suffer, substantial and permanent damages.
- 34) Said malicious prosecution caused Plaintiff, Cunningham, to sustain loss of income, the inability to obtain driving privileges, loss of job opportunities, to suffer severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.
- 35) As a result of the foregoing, Plaintiff, Cunningham, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

- 36) Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "35" as if more fully set forth herein.
- 37) The actions of defendants heretofore described constitute an unlawful arrest, assault and battery and malicious prosecution, all in violation of Plaintiffs' civil rights.
- 38) Defendants violated Plaintiff's civil rights, including the First, Fourth, Fifth and Fourteenth

Amendments to the United States Constitution and 42 U.S.C. Section 1981 and 1983.

- 39) Defendants deprived Plaintiff of his liberty in violation of their civil rights.
- 40) Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.
- 41) The supervisors and policy making officers of defendant **CITY**, its Police Department and the Kings County District Attorney's Office, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.
- 42) Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.
- 43) Defendant, **CITY and/or the Kings County District Attorney's Office**, have sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said

policy upon the constitutional rights of Plaintiff and others similarly situated.

44) Defendant, **CITY**, hired and retained in its employ defendant Kacanski and other police officers with knowledge that said police officer had vicious propensities, racially motivated bias, credibility issues and inadequate training and was, therefore, unfit to be a police officer.

45) That defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

46) As a result of the foregoing, Plaintiff, Cunningham, has suffered serious and severe emotional distress, personal injuries, loss of earnings and loss to his reputation.

47) As a result of the foregoing, Plaintiff, Cunningham, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

48) Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "47" above as if fully set forth herein.

- 49) Defendants, CITY, and/or Kings County District Attorney was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers and or prosecutor(s).
- 50) Defendants, CITY, and/or Kings County District Attorney negligently trained or failed to train its agents, servants and/or employees with regard to the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its agents, servants and/or employees engaged in such practices; negligently disciplined or failed to discipline its agents, servants and/or employees in such practices.
- 51) Defendants, CITY and/or Kings County District Attorney, failed to properly or effectively train, supervise and discipline its agents, servants and/or employees with regard to proper procedure under the circumstances as they appeared herein. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, including defendant Kacanski, who defendant CITY knew, or in the course of proper and adequate investigation should have known was unfit to continue to hold his positions of authority.

52) Defendants, CITY and or Kings County District Attorney, was, was negligent in hiring and/or retaining employees who they knew or should have known were not fit to be police officers, including defendant Kacanski and/or prosecutor(s).

53) As a result of the foregoing, Plaintiff has suffered serious and severe emotional injuries, loss of earnings, loss of freedom, legal expenses and loss to reputation.

54) As a result of the foregoing, Plaintiff, Cunningham, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

WHEREFORE, Plaintiff demands judgment against defendants in a sum of money which exceeds the limits of any court of lower jurisdiction.

Dated: Brooklyn, New York
July 17, 2018

Yours, etc.,

Stuart Meltzer, Esq.
Meltzer & Courtney, P.A.
Attorneys for Plaintiff
1 Pierrepont Plaza, 12th. Fl
Brooklyn, NY 11201
(718) 532-4300

(917) 698-8784, (917) 204-5099

Stu9esq@aol.com

Jack@Courtneylaw.us

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VERIFICATION

Woodrow Cunningham states under penalty of perjury:

1. I am the plaintiff in the above captioned matter and as such am familiar with the facts and circumstances herein and heretofore;

2. I have read the forgoing Verified Compliant and find its contents to be true based upon my own knowledge and recollections

3. As to those matters stated upon information and belief, I believe them to be true as well.

s/ Woodrow Cunningham

Woodrow Cunningham

Notary:

Subscribed and sworn before me this 23rd day of July 2018

s/ John E. Courtney

John E. Courtney

Notary Public State of New York

No. 02CO6287696

Qualified in Kings County

Comm. Expires August 19, 2021

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DISTRICT ATTORNEY,
Defendants.

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SUMMONS and VERIFIED COMPLAINT

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Stuart Meltzer & Associates, PC
Attorneys for plaintiff
1 Pierrepont Plaza, 12th Floor
Brooklyn, NY 11201

By: Jack Courtney 4540217
917 204 5099 917 698 8784

-s/ Jack Courtney-
Signature -- Rule 130.1.1-a